

25TRCV02404 25TRCV02404

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-09-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CB%2C09%2F09%2F2026

Source SHA-256: ff0c202c5882f6d3bbbba187d6de339fda8f20050640e0994eb47504a9d9d87b1

Case Number: 25TRCV02404 Hearing Date: September 9, 2026 Dept: B

Superior

Court of California

County

of Los Angeles

Southwest

District

Torrance

Dept. B

CYNTHIA

CAMPOS,

Plaintiff,

Case No.:

25TRCV02404

vs.

[Tentative]

RULING

COSTCO

WHOLESALE CORPORATION, et al.,

Defendants.

Hearing

Date: September 9, 2026

Moving Parties: Plaintiff Cynthia Campos

Responding

Party: Defendant Costco Wholesale Corporation

Motion

to Compel Compliance and, in the alternative, Further Response to Demand for Inspection for Property

The Court considered the moving, opposition, and reply papers.

RULING

The

motion to compel is DENIED.

BACKGROUND

On July 22, 2025, plaintiff Cynthia Campos filed a complaint against Costco Wholesale Corporation, Charles (last name unknown), Denise (last name unknown), and Nick (last name unknown) for (1) premises liability and (2) general negligence.

LEGAL

AUTHORITY

Under

CCP §2031.010, “(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action. . . . (d) A party may demand that any other party allow the party making the demand, or someone acting on the

demanding party's behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it."

DISCUSSION

Plaintiff requests that the Court compel defendant Costco Wholesale Corporation to permit plaintiff to conduct a site inspection of the subject premises as noticed, which includes the inspection of defendant's surveillance camera system, specifically, an order permitting plaintiff to view all of defendant's CCTV monitors and cameras, whether maintained on a remote system or in a back office, so that plaintiff may independently verify whether the location of the incident is captured on any camera.

The complaint alleges that on July 25, 2025, plaintiff was injured on the premises at Costco Wholesale at 2620 Lomita Blvd., Torrance. Defendants negligently failed to inspect, maintain, and keep the subject property in a safe condition, failed to exercise reasonable care to prevent the creation of a dangerous condition, and failed to provide adequate warnings of any such condition. As a direct and proximate result of defendants' negligence, plaintiff slipped and fell on a liquid substance resembling laundry detergent that was present on the floor of the subject property, thereby sustaining serious injuries and damages.

On April 9, 2026, plaintiff served a notice of inspection of property and things, noticing an inspection of the subject premises and requesting (1) a visual inspection and photography of the relevant areas of the warehouse; (2) coefficient-of-friction and slip-resistance testing of the floor; and (3) inspection of defendant's camera system, including CCTV cameras and associated viewing systems to determine whether the area of the alleged fall is captured on any camera.

On May 11, defendant served objections.

The parties engaged in extensive meet and confer efforts. The item that remains in dispute is (3).

Defendant objected on the ground that it is overbroad, seeks information that is beyond the scope of the pleadings, is not reasonably calculated to lead to the discovery of admissible evidence, and seeks confidential, proprietary, and security-sensitive information. Further, defendant objected because the

requested information would improperly expose defendant's surveillance infrastructure, creating significant privacy and safety concerns. Defendant stated that they had previously communicated to plaintiff that no camera captures the specific aisle where the alleged incident occurred. In a good faith effort to cooperate defendant offered to permit a limited visual inspection of the single camera that captures the general vicinity of the area, subject to reasonable limitations.

Plaintiff argues that the Court should compel the full scope of inspection because camera coverage of the incident location goes directly to the existence, preservation, and scope of video evidence of the fall. Plaintiff asserts that she seeks only to observe which of defendant's cameras view the fall area; she does not seek defendant's proprietary security architecture or unrelated camera feeds. Plaintiff contends that defendant's own conduct makes independent verification necessary because defendant represents that no camera captured the fall yet admits that it preserved footage from the wrong date. Plaintiff argues that defendant's proposed substitute single-camera view plus a walk-through video "recorded and curated by defendant's own representative" is inadequate.

In opposition, defendant argues that plaintiff's demand is facially overbroad and not reasonably tailored. Defendant asserts that the dispute is solely whether plaintiff may inspect unrelated CCTV monitors, cameras, feeds, and secured viewing systems across the warehouse, which she may not. Defendant contends that the demand is not limited to a particular camera, location, aisle, or viewing angle and the use of the phrase "including but not limited to" demonstrates the absence of any meaningful limitation. Defendant argues that less intrusive means "fully answer the coverage question" of whether the alleged incident falls within any camera's view by standing at the fall location, observing and photographing cameras visible in the vicinity, measuring or analyzing sightlines, inspecting the location and orientation of the identified camera, and reviewing a contemporaneous verification recording showing a representative move between the camera and the fall location. Defendant further argues that the "wrong-date preservation" does not justify unlimited access.

In reply, plaintiff argues that Costco's proffered "less intrusive alternatives" are not verification at all. Further, Costco's preservation failure is not a "footnote, it is the reason independent inspection is necessary."

The Court rules as follows: The Court finds that plaintiff's demand is overbroad as it seeks to have unlimited access to the entire CCTV system. Plaintiff has not shown good cause. Defendant has offered a reasonably tailored inspection that would address plaintiff's request to independently verify whether any camera on the premises captured plaintiff's fall.

Sanctions

Plaintiff requests \$1560 in sanctions against defendant. The Court finds that sanctions are not warranted. Defendant requests an unspecified amount of monetary sanctions against plaintiff. Defendant's request for sanctions is not properly noticed.

ORDER

The motion is DENIED.

Plaintiff's request for monetary sanctions is DENIED.

Defendant's request for monetary sanctions is DENIED.

Defendant is ordered to give notice of ruling.